CloudFuze Purchase Agreement for {{Company Name}}.

This agreement provides {{Company Name}}.with pricing for use of the CloudFuze's X-Change Enterprise Data

Cloud-Hosted SaaS Solution | Managed Migration | Dedicated Migration Manager

Job Requirement	Description	Migration Type	Price(USD)
CloudFuze X-Change Data Migration	Slack to Teams ---------- **Up to {{userscount}} Users | All Channels and DMs**	**Managed Migration** One-Time	{{price_migration}}
Managed Migration Service	Fully Managed Migration | Dedicated Project Manager | Pre-Migration Analysis | During Migration Consulting |Post-Migration Support and Data Reconciliation Support | End-to End Migration Assistance with 24*7 Premium Support ---------- **Valid for {{Duration}} Month**	**Managed Migration** One-Time	{{price_data}}

Total Price **{{total price}}**

CloudFuze, Inc. | 2500 Regency Parkway, Cary, NC 27518 | https://www.cloudfuze.com/
Phone: +1 252-558-9019 | **Email:** sales@cloudfuze.com | support@cloudfuze.com

Classification: Confidential

Important Payment Notes:

- **100% pre-payment before initiating the migration.**
- **All prices are in US dollars (USD).**
- **Any required sales taxes are not included in the above agreement.**
- **Overage Charges:** $35 per User | $500 per Additional Month
- **Initial Service Term:** 09/01/2023 till 09/30/2023

SAAS SERVICE AGREEMENT:

This SaaS Services Agreement ("Agreement") is entered on this **08/31/2023** (the "Effective Date") between **CloudFuze, Inc.** with a place of business at 2500 Regency Parkway , Cary , NC 27518 ("Company"), and the Customer listed above ("Customer"). This Agreement includes and incorporates the above Order Form, In Scope Features list Exhibit ("Exhibit 1"), Out of Scope Features list Exhibit ("Exhibit 2"), all attachments hereto, as well as the attached Terms and Conditions and contains, among other things, warranty disclaimers, liability limitations and use limitations. There shall be no force or effect to any different terms of any related purchase order or similar form even if signed by the parties after the date hereof.

For CloudFuze, Inc.	**{{** company name **}}**
By : _____	By : _____
Name: _____	Name: _____
Title : _____	Title : _____
Date : _____	Date : _____

TERMS AND CONDITIONS

Subject to the terms of this Agreement, Company will use commercially reasonable efforts to provide Customer the Migration Services. As part of the registration process, Customer will identify an administrative username and password for Customer's Company account. Company reserves the right to refuse registration of or cancel passwords it deems inappropriate.

RESTRICTIONS AND RESPONSIBILITIES

Customer will not, directly or indirectly: reverse engineer, decompile, disassemble or otherwise attempt to discover the source code, object code or underlying structure, ideas, know-how or algorithms relevant to the Services or any software, documentation or data related to the Services ("Software"); modify, translate, or create derivative works based on the Services or any Software (except to the extent expressly permitted by Company or authorized within the Services); use the Services or any Software for timesharing or service bureau purposes or otherwise for the benefit of a third; or remove any proprietary notices or labels. With respect to any Software that is distributed or provided to Customer for use on Customer premises or devices, Company hereby grants Customer a non- exclusive, non-transferable, non-sub licensable license to use such Software during the Term only in connection with the Services. Customer represents, covenants, and warrants that Customer will use the Services only in compliance with Company's standard published policies then in effect (the "Policy") and all applicable laws and regulations. Customer hereby agrees to indemnify and hold harmless Company against any damages, losses, liabilities, settlements, and expenses (including without limitation costs and attorneys' fees) in connection with any claim or action that arises from an alleged violation of the foregoing or otherwise from Customer's use of Services. Although Company has no obligation to monitor Customer's use of the Services, Company may do so and may prohibit any use of the Services it believes may be (or alleged to be) in violation of the foregoing. Customer shall be responsible for obtaining and maintaining any equipment and ancillary services needed to connect to, access or otherwise use the Services, including, without limitation, modems, hardware, servers, software, operating systems, networking, web servers and

the like (collectively, “Equipment”). Customer shall also be responsible for maintaining the security of the Equipment, Customer account, passwords (including but not limited to administrative and user

passwords) and files, and for all uses of Customer account or the Equipment with or without Customer's knowledge or consent.

CONFIDENTIALITY, PROPRIETARY RIGHTS

Each party (the "Receiving Party") understands that the other party (the "Disclosing Party") has disclosed or may disclose business, technical or financial information relating to the Disclosing Party's business (hereinafter referred to as "Proprietary Information" of the Disclosing Party). Proprietary Information of Company includes non-public information regarding features, functionality and performance of the Service. Proprietary Information of Customer includes non-public data provided by Customer to Company to enable the provision of the Services ("Customer Data"). The Receiving Party agrees: (i) to take reasonable precautions to protect such Proprietary Information, and (ii) not to use (except in performance of the Services or as otherwise permitted herein) or divulge to any third person any such Proprietary Information. The Disclosing Party agrees that the foregoing shall not apply with respect to any information after five (5) years following the disclosure thereof or any information that the Receiving Party can document (a) is or becomes generally available to the public, or (b) was in its possession or known by it prior to receipt from the Disclosing Party, or (c) was rightfully disclosed to it without restriction by a third party, or (d) was independently developed without use of any Proprietary Information of the Disclosing Party or (e) is required to be disclosed by law. Customer shall own all right, title and interest in and to the Customer Data, as well as any data that is based on or derived from the Customer Data and provided to Customer as part of the Services. Company shall own and retain all right, title and interest in and to (a) the Services and Software, all improvements, enhancements or modifications thereto, (b) any software, applications, inventions or other technology developed in connection with Implementation Services or support, and (c) all intellectual property rights related to any of the foregoing. Notwithstanding anything to the contrary, Company shall have the right collect and analyze data and other information relating to the provision, use and performance of various aspects of the Services and related systems and technologies (including, without limitation, information concerning Customer Data and data derived there from), and Company will be free (during and after the term hereof) to (i) use such information and data to improve and enhance the Services and for other development, diagnostic and corrective purposes in connection with the Services and other Company offerings, and (ii) disclose such data solely in aggregate or other de-identified form in connection with its business. No rights or licenses are granted except as expressly set forth herein.

PAYMENT OF FEES

Customer will pay Company the then applicable fees described in the Order Form for the Services and Implementation Services in accordance with the terms therein (the “Fees”). If Customer’s use of the Services exceeds the Service Capacity set forth on the Order Form or otherwise requires the payment of additional fees (per the terms of this Agreement), Customer shall be billed for such usage and Customer agrees to pay the additional fees in the manner provided herein. Company reserves the right to change the Fees or applicable charges and to institute new charges and Fees at the end of the Initial Service Term or then-current renewal term, upon thirty (30) days prior notice to Customer (which may be sent by email). If Customer believes that Company has billed Customer incorrectly, Customer must contact Company no later than 60 days after the closing date on the first billing statement in which the error or problem appeared, in order to receive an adjustment or credit. Inquiries should be directed to Company’s customer support department. Company represents and warrants that it will perform all Services in a professional and workmanlike manner in accordance with generally accepted industry standards, practices, and principles applicable to such Services and shall be responsible for the professional quality, accuracy and completeness required under this agreement. Company will complete the Services in the Agreement within thirty (30) days from the Effective Date, Unless Otherwise Company provides a different timeline based on the Service scope. If for any reason, Company cannot perform the Services in thirty (30) days, Company will extend Service implementation timeline till the Services are fully completed and Customer is not responsible for additional charges in this case. Company may choose to bill through an invoice, in which case, full payment for invoices issued in any given month must be received by Company thirty (30) days after the mailing date of the invoice. Unpaid amounts are subject to a finance charge of 1.5% per month on any outstanding balance, or the maximum permitted by law, whichever is lower, plus all expenses of collection and may result in immediate termination of Service. Customer shall be responsible for all taxes associated with Services other than U.S. taxes based on Company’s net income.

If Service implementation or migration project is being delayed due to customer not responding in a timely manner or due to other delays from Customer which are not communicated to the Company before the Effective Date, Company may charge additional fee as specified under Overage Charges.

TERM AND TERMINATION

Subject to earlier termination as provided below, this Agreement is for the Initial Service Term as specified in the Order Form, and shall be automatically renewed for additional periods of the same duration as the Initial Service Term (collectively, the "Term"), unless either party requests termination at least thirty (30) days prior to the end of the then-current term.

In addition to any other remedies it may have, either party may also terminate this Agreement upon thirty (30) days' notice (or without notice in the case of nonpayment), if the other party materially breaches any of the terms or conditions of this Agreement. Customer will pay in full for the Services up to and including the last day on which the Services are provided. All sections of this Agreement which by their nature should survive termination will survive termination, including, without limitation, accrued rights to payment, confidentiality obligations, warranty disclaimers, and limitations of liability.

WARRANTY AND DISCLAIMER

Company shall use reasonable efforts consistent with prevailing industry standards to maintain the Services in a manner which minimizes errors and interruptions in the Services and shall perform the Implementation Services in a professional and workmanlike manner. Services may be temporarily unavailable for scheduled maintenance or for unscheduled emergency maintenance, either by Company or by third-party providers, or because of other causes beyond Company's reasonable control, but Company shall use reasonable efforts to provide advance notice in writing or by e-mail of any scheduled service disruption.

HOWEVER, COMPANY DOES NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED OR ERROR FREE; NOR DOES IT MAKE ANY WARRANTY AS TO THE RESULTS THAT MAY BE OBTAINED FROM USE OF THE SERVICES. EXCEPT AS EXPRESSLY SET FORTH IN THIS SECTION, THE SERVICES AND IMPLEMENTATION SERVICES ARE PROVIDED "AS IS" AND COMPANY DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE AND NON-INFRINGEMENT.

INDEMNITY

Company shall hold Customer harmless from liability to third parties resulting from infringement by the Service of any United States patent or any copyright or misappropriation of any trade secret, provided Company is promptly notified of any and all threats, claims and proceedings related thereto and given reasonable assistance and the opportunity to assume sole control over defense and settlement; Company will not be responsible for any settlement it does not approve in writing. The foregoing obligations do not apply with respect to portions or components of the Service

1) Not supplied by Company,

2) Made in whole or in part in accordance with Customer specifications,

3) That are modified after delivery by Company,

4) Combined with other products, processes or materials where the alleged infringement relates to such combination,

5) Where Customer continues allegedly infringing activity after being notified thereof or after being informed of modifications that would have avoided the alleged infringement, or (vi) where Customer's use of the Service is not strictly in accordance with this Agreement. If, due to a claim of infringement, the Services are held by a court of competent jurisdiction to be or are believed by Company to be infringing, Company may, at its option and expense:

A. Replace or modify the Service to be non-infringing provided that such modification or replacement contains substantially similar features and functionality,

B. Obtain for Customer a license to continue using the Service, or

C. If neither of the foregoing is commercially practicable, terminate this Agreement and Customer's rights hereunder and provide Customer a refund of any prepaid, unused fees for the Service.

LIMITATION OF LIABILITY

NOTWITHSTANDING ANYTHING TO THE CONTRARY, EXCEPT FOR BODILY INJURY OF A PERSON, COMPANY AND ITS SUPPLIERS (INCLUDING BUT NOT LIMITED TO ALL EQUIPMENT AND TECHNOLOGY SUPPLIERS), OFFICERS, AFFILIATES, REPRESENTATIVES, CONTRACTORS AND EMPLOYEES SHALL NOT BE RESPONSIBLE OR LIABLE WITH RESPECT TO ANY SUBJECT MATTER OF THIS AGREEMENT OR TERMS AND CONDITIONS RELATED

THERETO UNDER ANY CONTRACT, NEGLIGENCE, STRICT LIABILITY OR OTHER THEORY:

A) FOR ERROR OR INTERRUPTION OF USE OR FOR LOSS OR INACCURACY OR CORRUPTION OF DATA OR COST OF PROCUREMENT OF SUBSTITUTE GOODS, SERVICES OR TECHNOLOGY OR LOSS OF BUSINESS.

B) CUSTOMER DATA WILL BE PURGED PERMANENTLY FROM CLOUDFUZE EQUIPMENT AFTER 30 DAYS OF THE COMPLETION OF 'ONE-TIME' AND/OR 'DELTA' MIGRATION. AFTER THE PURGE, CLOUDFUZE, INC WILL NO LONGER BE RESPONSIBLE FOR ANY MORE MIGRATIONS UNDER THIS SERVICE AGREEMENT AND/OR CUSTOMER DATA RETRIEVAL

C) FOR ANY INDIRECT, EXEMPLARY, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES; (C) FOR ANY MATTERBEYOND COMPANY'S REASONABLE CONTROL; OR (D) FOR ANY AMOUNTS THAT, TOGETHER WITH

AMOUNTS ASSOCIATED WITH ALL OTHER CLAIMS, EXCEED THE FEES PAID BY CUSTOMER TO COMPANY FOR THE SERVICES UNDER THIS AGREEMENT IN THE 12 MONTHS PRIOR TO THE ACT THAT GAVE RISE TO THE LIABILITY, IN EACH CASE, WHETHER OR NOT COMPANY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

MISCELLANEOUS

If any provision of this Agreement is found to be unenforceable or invalid, that provision will be limited or eliminated to the minimum extent necessary so that this Agreement will otherwise remain in full force and effect and enforceable. This Agreement is not assignable, transferable or sub-licensable by Customer except with Company's prior written consent. Company may transfer and assign any of its rights and obligations under this Agreement without consent. This Agreement is the complete and exclusive statement of the mutual understanding of the parties and supersedes and cancels all previous written and oral agreements, communications and other understandings relating to the subject matter of this Agreement, and that all waivers and modifications must be in a writing signed by both parties, except as otherwise provided herein. No agency, partnership, joint venture, or employment is created as a result of this Agreement and Customer does not have any authority of any kind to bind Company in any respect whatsoever. In any action or proceeding to enforce rights under this Agreement, the prevailing party will be entitled to recover costs and attorneys' fees. All notices under this Agreement will be in writing and will be deemed to have been duly given when received, if personally delivered; when receipt is electronically confirmed, if transmitted by facsimile or e-mail; the day after it is sent, if sent for next day delivery by recognized overnight delivery service; and upon receipt, if sent by certified or registered mail, return receipt requested. This Agreement shall be governed by the laws of the State of North Carolina without regard to its conflict of law's provisions. The parties shall work together in good faith to issue a least one mutually agreed upon press release within 90 days of the Effective Date, and Customer otherwise agrees to reasonably cooperate with Company to serve as a reference account up.

Exhibit 1- IN SCOPE FEATURES

IN SCOPE FEATURES	
Public Channels Migration	Transferring public channels from Slack to Teams, including all associated messages, attachments, and other content.
Private Channels Migration	Migrating private channels from Slack to Teams, preserving message history and content while maintaining the appropriate access restrictions.
Channel Members	Ensuring that all members of the migrated channels are correctly transferred to Teams, maintaining the same membership and permissions.
Message Posted Username	Retaining the information about the user who posted each message during the migration process, enabling proper attribution.
Text Messages	Transferring regular messages from Slack to Teams, including text-based communication between users.
Threads	Preserving threaded conversations within channels, allowing users to follow and participate in ongoing discussions.
Attachments	Migrating file attachments shared within channels, ensuring that all relevant files are transferred and accessible in Teams.
User Mentions	Retaining user mentions in messages during the migration, ensuring that notifications and references to specific users are preserved.
Emojis:	Transferring emojis used in Slack to Teams, maintaining the same expressions and visual elements in the migrated content.
User Groups	Transferring user groups or teams from Slack to Teams, preserving the group structure and membership for seamless collaboration.
Direct Messages Migration	Migrating one-on-one conversations or direct messages from Slack to Teams, ensuring that private communication is transferred securely.
Pinned Messages	Preserving pinned messages in Direct Messages(channels is out of scope), allowing important information and announcements to remain accessible in Teams chats.
Pre-Scan	Conducting a preliminary scan or analysis of the Slack data to identify and prepare for any potential migration challenges or issues.
Unlimited Delta	Offering unlimited delta migration as a feature, allowing for incremental and continuous migration of messages after a specific point in time, ensuring all new and updated content is seamlessly transferred

Signature Certificate

Reference number: 8WIAL-WVLLG-ENYCK-YLAMU

Signer	Timestamp	Signature
Adi Nandyala Email: adi.nandyala@cloudfuze.com		Adi Nandyala
Sent:	28 Aug 2023 13:49:10 UTC	
Viewed:	28 Aug 2023 14:46:22 UTC	
Signed:	28 Aug 2023 16:04:18 UTC	
Recipient Verification:		IP address: 136.56.145.126
✓Email verified	28 Aug 2023 14:46:22 UTC	Location: Cary, United States
Email: soberlink@definitivehc.com		Scott Oberlink
Sent:	28 Aug 2023 13:49:10 UTC	
Viewed:	28 Aug 2023 17:31:59 UTC	
Signed:	28 Aug 2023 17:33:33 UTC	
Recipient Verification:		IP address: 104.207.198.206
✓Email verified	28 Aug 2023 17:31:59 UTC	Location: Southborough, United States

Document completed by all parties on:
28 Aug 2023 17:33:33 UTC

Signed with PandaDoc

PandaDoc is a document workflow and certified eSignature solution trusted by 40,000+ companies worldwide.